

ALABAMA DEPARTMENT OF REVENUE INDIVIDUAL AND CORPORATE TAX
DIVISION
ADMINISTRATIVE CODE

CHAPTER 810-3-6
GAIN OR LOSS - BASIS OF PROPERTY; ADJUSTED BASIS

810-3-6-.14 Basis Of Property Acquired From A Spouse Or Former Spouse.

(1) The basis of property received from a spouse or former spouse in a transaction in which a gain or loss was determined under §40-18-8(m), Code of Ala. 1975, shall be determined in accordance with 26 U.S.C. §1041. For interpretation of federal statutes adopted by the Alabama Legislature see Rule 810-3-1.1-.01, Operating Rules.

(2) Section 40-18-8(m) concerns the transfer of property to a spouse or former spouse.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 40-18-6.

History: New Rule: Filed April 28, 1999; effective June 2, 1999.